MyFitnessPal Privacy Policy

Effective Date: March 18, 2025

Hello! During your time with MyFitnessPal, you'll discover the impact of your food choices and how to build healthier habits that support your goals. It's a very personal journey! To give you the best support, we collect personal information from you along the way.

This Privacy Policy ("Policy") describes how MyFitnessPal, Inc., ("MyFitnessPal," "we," "our," or "us") collects, uses, discloses, and otherwise processes your personal information when you use our Services (use of our Site, Mobile App, and other interactions you may have with us). This includes your choices and rights regarding your personal information. This Policy forms a part of Terms of Service and terms used but not defined in this policy are defined in the Terms of Service (another great read).

First things first, you have to be at least 18 years old to use MyFitnessPal. Do not use these Services if you are under the age of 18. Our Services are not designed nor otherwise intended for children or anyone under 18.

We implement technical measures to prevent individuals under 18 years of age from creating an account or otherwise using our Services. If we become aware that an individual under 18 may have provided us with personal information, we will investigate and if applicable, take steps to remove the data and delete that individual's account.

What's New in this Version

This Policy updates our previous version (dated 12/13/24) with a user friendly format, streamlining how our users can exercise their privacy rights, and updates to the information we collect and use.

Quick Links to Information about Your Privacy

While our Policy might be comprehensive, we hope you do read it. 🙂 These quick links might help!

- *What information does MyFitnessPal collect*? MyFitnessPal collects information from you directly when you create an account, use our Services, and through third parties.

More detail? See here.

- *How does MyFitnessPal use the information it collects*? MyFitnessPal uses your information to provide you with our Services, show you relevant ads and content, and improve the quality of our Services. More detail? See here.
- *Does MyFitnessPal sell my information*? While MyFitnessPal does not expressly "sell" information to others, certain uses of Functional Cookies and/or Targeted Advertising Cookies on our website to collect, use, and disclose information may constitute "sales" or "sharing" of personal information or the use of personal information for "targeted advertising" purposes under applicable privacy laws. More detail? See here. If you prefer we don't do so, you may provide us with your choices as described in the Managing your Marketing and Personalized Advertising Preferences section.
- *How does MyFitnessPal share my information*? MyFitnessPal shares your information with service providers, business partners, and other third parties to provide you with our Services. We also share your information with marketing and advertising partners to show you relevant content and advertising. More detail? See here.
- *Does MyFitnessPal permit users to choose whether they receive personalized ads and marketing content*? Yes, MyFitnessPal provides users with the ability to decide whether they want to receive personalized ads or have their information shared for that purpose. You may provide us with your choices as described in the Managing your Marketing and Personalized Advertising Preferences section.

Personal Information We Collect

We may collect personal information directly from you, automatically through your use of the Services, and from third-parties.

Personal Information We Collect Directly from You

- Account and Profile Information. This includes your name, email address, general location information (country/zip code), profile image or photo (if you choose to provide one), username and password, date of birth, and sex.
- Food and Activity Diary Data. Certain features of our Services allow you to voluntarily share information about your dietary habits and activities you engage in. This includes your:
  - Dietary habits;
  - Food, drink, and medications you consume (including as submitted via voice logging) and purchase (via our grocery integrations);
  - Calorie count;
  - Dietary restrictions;

- Fitness level, activity, and goals (e.g. weekly goals or habits like eat more protein);
- Lifestyle information (e.g., sleeping data);
- Body measurements (e.g., height, weight, and BMI);
- Information related to any physiological conditions;
- Progress photos you may choose to provide; and
- Other information you might choose to submit in the notes (e.g. observations and reflections about your progress and mindset).

Food and Activity Diary Data may include sensitive personal information when the information indicates or allows someone to infer a health condition.

- Communications with MyFitnessPal. This includes your: email address, name, and any other content provided when you communicate with us, including exchanges with our personnel and Support Center chatbot.
- Communications posted on social media pages, community forums, and online discussion groups. This includes posted content and related contact information you provide when interacting with our social media pages, online discussion groups, or public-facing community forums sponsored by or affiliated with MyFitnessPal.
- Information you exchange with other MyFitnessPal users. We may receive the personal information you exchange with other MyFitnessPal users (like your name, email address, diary entries, photos, fitness goals, and achievements) through our user messaging channel via the “Friends“’ tab.
- Research and Survey information. This may include information you provide if you participate in research and surveys, such as contact information, feedback, and other information you choose to provide.
- Events and Registration Details. This may include information related to your participation in our events (if any) as may be collected when you register for such events. For example, if you register for or attend an event that we host or sponsor, we will collect information related to your registration for and participation in such event.
- Preferences and Other Requests. This may include information about your preferences, including communication preferences, preferences related to your use of the Services, and any other preferences or requests you provide when interacting with us.
- Payment information. If you pay for a Premium Subscription through our website, you may be asked to provide payment information. This information is not directly collected or stored by MyFitnessPal but instead, is collected by a third party payment platform MyFitnessPal uses to facilitate the transaction.

Personal Information We Collect Automatically

MyFitnessPal may collect Usage and Device Data. This may include details about your browser, operating system, or device (such as your cookie identifiers, internet protocol (IP) address, mobile advertising identifier, and other unique identifiers), internet service provider, mobile carrier, general location information (including inferred location based off of your IP address), actions that you take while using the Services, information about how you interact with the Services, including the frequency and duration of your activities, information about the links you click, and other information about how you use the Services.

MyFitnessPal may collect information, such as usage and device data, from you automatically through cookies and other tracking technologies (collectively, "Cookies") we use to enhance your experience when you use our Services.

We use Cookies for a variety of purposes, including to make our site work, ensure security, and prevent fraud (Required Cookies); to provide enhanced functionality and analyze usage to improve our website (Functional Cookies); and to provide you with personalized content and advertisements (Targeted Advertising Cookies).

- What are Cookies? "Cookies" are small text files that are placed on your device when you visit certain websites. Like many other online service providers, we (and our third-party service providers and partners) use cookies and other similar technologies (e.g., pixels, web beacons, local storage objects, log files, software development kits, etc.) on the Services for various purposes. We collect information through cookies through those we set directly ("First-Party Cookies") and those set by third parties ("Third-Party Cookies").
- Managing your Cookie Preferences. Depending on the country where you reside, you have choices with respect to Cookies. For example, by modifying your browser preferences, you have the choice to accept all cookies, to be notified when a cookie is set, or to reject all cookies. If you choose to reject all cookies, some of our Service's features may not work properly. You can also learn more about cookies, how they work, and how to manage them here.

  You can adjust your preferences and provide or withdraw your consent as described in the Managing your Marketing and Personalized Advertising Preferences section below.

Personal Information We Receive From Third Parties

We may receive information about you from other sources, such as through third party connected health devices, service providers, research partners, marketing and advertising partners, and social media platforms.

- Service providers. Our service providers may provide us with your information to enrich our Services. For example, we may collect information about how you use our Services to improve our user experience and ensure the security of our Services. We also use service providers to help us communicate with you when you have questions or information requests.
- Research partners. We may collect information for research purposes and surveys we conduct. This may include demographic information, health and fitness goals, and input regarding the use of our Services.
- Marketing and advertising companies. This includes third parties who may disclose information about your interests, demographic information, and information about the marketing and advertisements you have seen or clicked on.
- Business partners. We may partner with other businesses to offer the Services. We may receive your personal information from those business partners as necessary or appropriate for the purposes listed in this Policy.
- Information provided by other MyFitnessPal users. We may receive personal information about you provided by other MyFitnessPal users (like shared content, photos, or achievements) through the messaging channel via the “Friends” tab.
- Social media platforms. You may choose to log in to the Services through certain social media platforms. When you connect to the Services using your social media account, we may collect or receive personal information about you that you have provided to that social media platform, such as your name, email address, profile picture, friends list, and other similar information available on your profile.
- Information Collected from Connected Health Device Data. Certain connected devices, such as heart rate monitors, Continuous Glucose Monitoring devices, activity trackers, exercise equipment, scales, and/or wearables, that integrate with the Services, may allow us to collect Food and Activity Diary Data with your permission.

  With your permission, we may also collect relevant data from your device’s health and fitness repository, such as Apple’s HealthKit or Android’s Google Health Connect.

  - The information you provide to HealthKit is then governed by the Apple Terms and Conditions and Privacy Policy. The unique information you choose to send from HealthKit is not used by MyFitnessPal for marketing and advertising or transferred by MyFitnessPal to third parties for marketing and advertising.
  - The information you provide to Google Health Connect is then governed by the Android Terms and Conditions and Privacy Policy. The unique information you choose to send from Google Health Connect is not used by MyFitnessPal for

marketing and advertising or transferred by MyFitnessPal to third parties for marketing and advertising.

- The information you provide to Samsung Health is then governed by the Android Terms and Conditions and Privacy Policy. The unique information you choose to send from Samsung Health is not used by MyFitnessPal for marketing and advertising or transferred by MyFitnessPal to third parties for marketing and advertising.

Aggregated, Deidentified, or Anonymized Information

Please note that we may aggregate, de-identify, or anonymize information so that it will no longer be considered personal information under applicable law. We may use and disclose de-identified information for purposes consistent with those described in this Policy or as otherwise permitted by applicable law.

How We Use Personal Information

- Provide our Services. We use your personal information in connection with the provision, administration, and management of the Services, including managing your account, providing troubleshooting and technical support, and otherwise running our day-to-day operations.
- Communicate with You. We use your personal information to communicate with you, including responding to your questions and requests. We may also use your personal information to send you communications to request information, seek your feedback, or provide you with administrative information, such as changes to our terms, conditions, and policies.
- Respond to your Requests to Exercise your Rights. We use your personal information to respond to your requests to exercise your rights over your personal information.
- Send You Promotional and Marketing Materials. We use your personal information to send you newsletters and other promotional communications, including information about MyFitnessPal's new offerings, features, offers, events, webinars, and other information.
- Targeted Advertising and Cross-Device Tracking.
    - *Targeted Advertising*. We engage in targeted advertising. This means that you may see advertisements that are targeted and personalized to you on the Services and/or you may see advertisements for MyFitnessPal on third-party services based on information that we have collected from and about you. If you'd like to opt out of such advertising, see how to change your preferences

under the Managing your Marketing and Personalized Advertising Preferences section below.

We and our third-party partners may use Tracking Technologies to collect certain information, including your device's IP address, online identifiers (e.g., cookie ID, mobile advertising ID, etc.), and activity information for such purposes. For example, our partners may use the fact that you visited our website to deliver advertisements to you on non-MyFitnessPal websites or they may use the fact that you used our mobile app to deliver advertisements to you in other mobile apps. Additionally, we and our partners may use the information collected to determine whether our interest-based advertising activities resulted in you engaging in other activities on the Services, receiving and interacting with our advertisements, or otherwise engaging with us.

- *Cross-Device Tracking*. We and our third-party partners may use the information we collect to help us identify other devices that you use (e.g., a mobile phone, tablet, computer, etc.). This means that your online behavior on your current browser or device and your device's location may be combined with information collected from your other browsers or devices. Upon making an inference that a device is in use by you, our partners may use this information to deliver an advertisement on the device, to limit the number of times you see an advertisement across your devices, and to help measure the effectiveness of our campaigns across devices.

- Analyze usage of our Services, Ad Performance, and Research

  - *Analyze performance of ads*. We engage third-party analytics providers to help us analyze traffic to evaluate usage of the Services and to understand the performance of our advertisements. These third parties may use Tracking Technologies on the Services to collect information for such purposes.

    For example, we use Google Analytics, a web analytics tool that may set cookies in your web browser, to help us understand how users engage with the Services. To learn more about Google Analytics' privacy practices, please click here. If you reside in a country which allows it to disable Google Analytics, please download and install the Google Analytics Opt-out Browser Add-on, which is available here.

  - *Research*. We use your personal information to administer surveys and questionnaires that help us better understand how MyFitnessPal users access and use the Services and for other research and analytics purposes, including to measure the effectiveness of the Services and the effectiveness of our marketing and advertising efforts.

- Enhance and Personalize our Services. We use your personal information to improve and enhance our Services, including through the use of various technologies (e.g., business intelligence tools, machine learning systems, and artificial intelligence), personalize content and features to your interests and goals (e.g., providing suggestions, reporting and analytics, meal plans, and recommendations), and test out new features and updates to our Services.
- Plan and Manage Events. We use your personal information to assist with event planning activities, such as event registration and attendance and connecting you with other event attendees. We may also use your personal information to facilitate special events, sweepstakes, contests, and promotions, which have their own specific participation rules.
- Maintain Security and Protect Rights. We use your personal information to help monitor and maintain the security of the Services and our business operations. Additionally, we use your personal information to prevent and detect fraud, unauthorized activities and access, and other misuse of the Services to protect you, our business, and others from unauthorized transactions and other unlawful or unsafe activity.
- Satisfy Our Legal Obligations. We use your personal information to comply with applicable legal and regulatory obligations and respond to legally valid requests and communications from law enforcement authorities to the extent required by applicable law.
- Manage pre-litigation or litigation matters. We use your personal information to defend our rights and interests in the event of pre-litigation or litigation.
- Carry Out Internal Operations. We use your personal information to conduct financial, tax, and accounting audits and assessments of our operations, including our privacy, security, and financial controls. We also use your personal information to administer our business, accounting, compliance, recordkeeping, and legal functions and for related risk and compliance purposes. We may also use your personal information to help maintain appropriate business records and enforce our policies and procedures.
- Carry Out Sales and Business Transactions. We may use your personal information in connection with the evaluation, negotiation, and/or completion of a business transaction (e.g., a merger, divestiture, restructuring, acquisition, reorganization, dissolution, or other sale or transfer of some or all of our assets), whether as a going concern or as part of any bankruptcy, liquidation, or similar proceeding, in which personal information held by us is among the assets transferred or is otherwise relevant to the evaluation, negotiation, or completion of the transaction.

How We Disclose Personal Information

We disclose personal information to the categories of recipients described below:

- Our Business Partners. We may partner with other businesses to offer the Services and disclose your personal information to those business partners as necessary or appropriate for the purposes listed in this Policy.
- Our Service Providers. We may disclose your personal information to third parties that provide business, professional, or technical support services to us and/or perform functions on our behalf to provide the Services. The services provided by these parties may include IT and website hosting, payment processing, market research, customer support (including our Support Center chatbot virtual agent), data storage, data analytics, auditing, and consulting and legal services.
- Other MyFitnessPal Users. We may disclose your personal information to other MyFitnessPal users in the context of specific features that are social in nature as part of the Services. For example, we will display any personal information that you post or make available using the Services' public-facing or interactive features, community forums, or discussion blogs. Please review your Settings to make sure you understand what information is being shared with your "Friends."
- Our Marketing and Advertising Partners. We may disclose your personal information, including device and browser information and activity and usage information, to our marketing and advertising partners, including social media platforms, third-party advertising networks, and other parties that assist us in serving, measuring the performance of, and optimizing our advertising campaigns.
- Our Analytics Providers. We may disclose your personal information, including device and browser information and activity and usage information, to parties that assist us in performing analytics and help us measure the effectiveness of the Services and our online and offline marketing and advertising efforts.
- Our Research Partners. We may disclose your personal information to our research partners, including those that perform surveys or research projects in partnership with us or on our behalf.
- Relevant Third Parties in Connection with Business Transactions or Reorganizations. If we or our affiliates are or may be acquired by, merged with, or invested in by another company, or if any of our assets are or may be transferred to another company, whether as part of a bankruptcy or insolvency proceeding or otherwise, we may disclose or transfer your personal information to the other company in accordance with applicable laws. We may also disclose certain personal information as necessary prior to the completion of such a transaction or other corporate transaction, such as a financing or restructuring, to lenders, auditors, and third-party advisors, including attorneys and consultants.

- Law Enforcement and Regulatory Authorities. We may disclose your personal information to comply with applicable legal and regulatory obligations and respond to legally valid requests and communications from law enforcement authorities to the extent required by applicable law.
- Other Parties. We may disclose your personal information to other parties at your direction or with your consent or as it may be justified under applicable law. If you are the winner of a sweepstakes or other contest, we may disclose your personal information to anyone who is entitled to request a winner's list. Finally, we can disclose your personal information to other parties as necessary or appropriate to: (i) comply with applicable law; (ii) protect the Services, our rights and property, or the rights, property, privacy, or safety of others; (iii) prevent, detect, investigate, and respond to fraud, unauthorized activities and access, illegal activities, or misuse of the Services; (iv) enforce, detect, investigate, and take action in response to violations of the MyFitnessPal Terms; and/or (v) allow us to pursue available remedies or limit damages that we may sustain.

Managing your Marketing and Personalized Advertising Preferences

You have the ability to manage your MyFitnessPal account and your preferences as described below.

- Marketing Communications

  We may send you periodic marketing and promotional emails or other similar communications, and we will obtain your consent to do so, where required by law. If you no longer wish to receive marketing and promotional communications from us, you may:

  - Change your email preferences in your account settings; or
  - Unsubscribe from these communications by following the "unsubscribe" instructions included in those communications.

- Cookie Preferences

  Depending on the country where you reside, you have choices with respect to cookies. For example, by modifying your browser preferences, you have the choice to accept all cookies, to be notified when a cookie is set, or to reject all cookies. If you choose to reject all cookies, some of the Services' features may not work properly. You can manage your cookie preferences as follows by visiting "Cookie Preferences" in our footer below. These preferences are reflected at a browser level - if you use more than one browser you will need to choose your preferences (e.g., opt out) in each browser. If

you use the same browser on multiple devices, you will also need to choose your preferences on each device.

- Personalized Advertising Preferences

  We engage in targeted advertising. This means that you may see advertisements that are targeted and personalized to you on the Services and/or you may see advertisements for MyFitnessPal on third-party services based on information that we have collected from and about you. If you'd like to consent, opt-in, or opt out of such advertising,

  - *On your browser* by visiting "Cookie Preferences" in our footer below and adjusting your cookie preferences (for example, in certain jurisdictions, opting out of Targeted Advertising Cookies).
  - *Through our app* by visiting the personalization settings within the Privacy Center tab under the "More" menu.

  These preferences are currently reflected at a browser or device level - if you use more than one browser you will need to choose your preferences (e.g., opt out) in each browser. If you use multiple devices, you will also need to choose your preferences on each device (for example, opting out both at the Cookie Preferences link and in the App).

- Managing Your Targeting Advertising Preferences through Third Parties.

  Some web browsers, websites/platforms, and mobile devices allow you to exercise certain choices with respect to targeted advertising. You can learn more about ad-serving companies and the options available to limit their collection and use of your information by visiting the websites for the Network Advertising Initiative, the Digital Advertising Alliance, and the European Interactive Digital Advertising Initiative. Similarly, you can adjust the settings on your mobile device to limit the use of your information for advertising, for example by deleting or resetting your advertiser ID on your Android device or limiting ad tracking on your Apple device.

International Transfers of Personal Information

MyFitnessPal is headquartered in the United States and has service providers in the United States and throughout the world. As a result, your personal information may be transferred to the United States and other countries or regions with data protection and privacy laws that differ from those in your country of residence.

When we transfer your personal information outside of your country of residence, we do so in accordance with applicable law and take appropriate steps to ensure your information is protected.

However, please note that while outside of the jurisdiction in which you reside, your personal information will be subject to applicable local laws, which might permit foreign governments, courts, law enforcement, or regulatory agencies to access your information in certain circumstances.

By using the Services and/or sharing your personal information with MyFitnessPal, you are informed that your personal information may be transferred to countries outside of your country of residence.

User-Generated Content

We may offer public-facing interactive features, community forums, or discussion blogs on the Services that enable you to share information (e.g. your achievements, reviews, testimonials, etc.). Any information you post to any public-facing section of the Services may be publicly viewable. By posting to such interactive features you acknowledge and agree that you have no expectation of privacy or confidentiality in the content you submit through such features, whether or not it contains your personal information. For more information about how this information is used, see the Ownership and Use of Content section (Our License to You and Your License to Us) in our Terms of Service.

How We Protect Your Information

We maintain reasonable technical, organizational, and administrative safeguards designed to protect the personal information under our control from loss, misuse, and unauthorized access, disclosure, alteration, and destruction. Please be aware that despite our efforts, no information security measures can guarantee security.

How We Retain Your Information

We will retain your personal information as long as necessary to fulfill the purposes outlined in this Policy (including to satisfy our legal or reporting requirements), unless a longer retention period is required or allowed under law. To determine the appropriate retention period for personal information, we consider the amount, nature, and sensitivity of the personal information; the potential risk of harm from unauthorized use or disclosure of the personal information; the purposes for which we use the personal information; whether we can achieve the purposes through other means; and the applicable legal requirements.

If we de-identify information, we will maintain and use the information in de-identified form and not attempt to re-identify the information except as required or permitted by law.

Contact Us

If you have any questions or concerns regarding this Policy or our privacy practices, you may contact us at privacy@myfitnesspal.com, or write us at:

MyFitnessPal, Inc.
ATTN: Privacy/Legal
100 Congress Avenue, Suite 400
Austin, TX 78701

Your Privacy Rights

Depending on where you live, the laws of your country, state, or province may have certain privacy rights over how your personal information is collected, stored, used and shared, including:

- **Right to Access and Data Portability**. The right to confirm whether we are processing your personal information, who we share it with, and to access or obtain a copy of your personal information in a portable and, to the extent technically feasible, readily usable format.
- **Right to Deletion**. The right to request that we delete your personal information (subject to certain exceptions prescribed by applicable law).
- **Right to Correction**. The right to request that we correct inaccuracies in your personal information, taking into account the nature of the information and purpose(s) for which we are processing it.
- **Right to limit or opt-out of certain types of processing**. This includes:
    - the "sale" of your personal information. Please note that while MyFitnessPal does not expressly "sell" information to others, certain uses of Functional Cookies and/or Targeted Advertising Cookies on our website to collect, use, and disclose information may constitute "sales" or "sharing" of personal information or the use of personal information for "targeted advertising" purposes under applicable privacy laws. Please see Managing your Marketing and Personalized Advertising Preferences section for more information about how to exercise your right;
    - the processing of your personal information for "profiling" and "targeted advertising" purposes; and
    - certain forms of "profiling" (in each case, as these terms are defined in applicable law).
- **Right to opt-in to processing of sensitive information**. Some states offer its residents the right to opt-in to the use of sensitive information. In this scenario, this means we cannot use sensitive information (outside of the provision of our Services) without your consent.
- **Right against discrimination**. We will not discriminate against you if you decide to

exercise your legal rights.

- **Right to appeal decisions**. You may have a right to appeal a decision on a privacy rights request. To appeal such a decision, please submit your request to privacy@myfitnesspal.com with “APPEAL” included in the subject line.
- **How do I exercise my rights?**
  - MyFitnessPal Privacy Request Center. You can exercise your privacy rights by visiting our MyFitnessPal Privacy Request Center and selecting the country/region in which you reside along with the privacy rights you wish to exercise.
  - How do I submit a request through an authorized representative? Where legally permitted, you may submit requests through an authorized agent or representative at privacy@myfitnesspal.com. To process these requests, we will need to verify the identity of the agent and that you have authorized them to act on your behalf.
- **Questions**. You can also contact our Data Protection Officer (privacy@myfitnesspal.com) if you have any inquiries or complaints regarding our processing of your personal information.

Additional Information for Certain Jurisdictions

Residents of certain jurisdictions have additional rights under applicable laws, including residents of certain states within the United States (e.g., California and Washington), the European Economic Area (EEA), Switzerland, and United Kingdom (UK); Canada, Brazil, and South Korea).

United States - California

United States - Washington

European Economic Area (EEA), Switzerland, and United Kingdom (UK) Residents

Canada

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